

25SMCV06530 25SMCV06530

County: los-angeles

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Case Number: 25SMCV06530 Hearing Date: July 1, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles

Beverly Hills Courthouse | Department 205

HNM PROPERTY MANAGEMENT, INC.,

Plaintiff,

v.

MICHAEL ANTHONY CLINTON, et al.,

Defendants.

Case No.:

25SMCV06530

Hearing Date: 07/01/26

Trial Date:

N/A

[TENTATIVE] RULING RE:

MOTION FOR AN ORDER COMPELLING A RESPONSE TO PLAINTIFF'S SPECIAL
INTERROGATORIES, SET ONE, FORM INTERROGATORIES, SET ONE, REQUESTS FOR
PRODUCTION, SET ONE, AND ESTABLISHING THE TRUTH OF PLAINTIFF'S REQUESTS FOR
ADMISSION, SET ONE; IMPOSITION OF SANCTIONS

Background

On December

17, 2025, Plaintiff HNM Property Management, Inc. ("Plaintiff") filed a complaint against Defendants Michael Anthony and Tiffany Clinton, Micro-Boutique Venice LLC (collectively, "Defendants"), and Does 1 to 10, alleging nine causes of action: (1) quiet title; (2) fraud; (3) civil theft; (4) conversion; (5) unjust enrichment; (6) declaratory relief; (7) breach of contract; (8) breach of contract; and (9) breach of contract. This action arises from alleged breaches of contracts and false representations by Defendants regarding funds provided by Plaintiff for various real estate deals involving six properties: (1) 401 Franklin St, Natchez, MS 39120-3263 (APN 0005-0001-0005) ("Franklin property"); (2) 107 Arlington Ave, Natchez, MS 39120 (APN 0052-0001-0007) ("Arlington property"); (3) 998 Cedar Bluff Rd, Centre, AL 35960 (APN 13-14-06-14-1-000-030.000) ("Cedar property"); (4) 232 W. Santa Catalina Rd., Palm Springs, CA 92262 (APN 504-103-008) ("Palm Springs property"); (5) 4573 Don Milagro Dr, Los Angeles, CA 90008 (APN 5028-012-002) ("Don Milagro property"); (6) 20 17th Ave, Venice, CA 90291 (APN 4226-010-017) ("Venice Hotel").

On February

11, 2026, Defendants filed an answer and alleged four affirmative defenses.

On June 1,

2026, Plaintiff filed the operative four motions to compel responses to discovery motions and deem the requests for admission, set one, admitted.

On June 16,

2026, Defendants filed a Case Management Statement, in which they stated that "Defendant has provided numerous documents and will provide formal response[s] to the Discovery requests."

No

opposition has been filed.

Motion to Compel Discovery

Requests & Deem RFAs Admitted Standard

I.

Requests for Production and Interrogatories

A

plaintiff may make a demand for production of documents and propound interrogatories without leave of court at any time 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first. (Code Civ. Proc., § 2031.020, subd. (b); Code Civ. Proc., § 2030.020, subd. (b).) The demand for production of documents is not limited by number, but the request must comply with the formatting requirements in Code of Civil Procedure section 2031.030. A party may propound 35 specially prepared interrogatories that are relevant to the subject matter of the pending action and any additional number of official form interrogatories that are relevant to the subject matter of the pending action. (Code Civ. Proc., § 2030.030, subd. (a)(1) - (a)(2).)

The

party to whom the request is propounded upon is required to respond within 30 days after service of a demand, but the parties are allowed to informally agree to an extension and confirm any such agreement in writing. (Code Civ. Proc., § 2031.260, subd. (a); Code Civ. Proc., § 2030.260, subd. (a); Code Civ. Proc., § 2031.270, subd. (a) - (b); Code Civ. Proc., § 2030.270, subd. (a) - (b).)

If

a party fails to timely respond to a request for production or interrogatories, the party to whom the request is directed at waives any right to exercise the option to produce writings under Code of Civil Procedure section 2030.230, and waives any objection, including one based on privilege or on the protection for work product. (Code Civ. Proc., § 2031.300, subd. (a); Code Civ. Proc., § 2030.290, subd. (a).) The party propounding the discovery requests may move for an order compelling responses. (Code Civ. Proc., § 2031.300, subd. (b); Code Civ. Proc., § 2030.290, subd. (b).) Unlike a motion to compel further discovery responses, a motion to compel initial discovery responses does not have any meet and confer requirements.

Code

of Civil Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction on a party engaging in the misuse of the discovery process to pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. A misuse of the discovery process includes failing to respond or submit to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).) A court has discretion to fix the amount of reasonable monetary sanctions. (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal.App.5th 771, 791.)

II.

Request for Admissions

“Any

party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc., § 2033.010.) “Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared” (Code Civ. Proc., § 2033.250, subd. (a).)

If

a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280, subd. (a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280, subd. (c).) Unlike a motion to compel further discovery responses, a motion to deem RFA admitted does not have any meet and confer requirements.

Analysis

I.

Discovery Requests

Plaintiff moves

to compel initial responses to its discovery requests and deem the content of its RFAs admitted.

On April 13,

2026, Plaintiff electronically served initial written discovery to Defendants that included its first set of SROGs, FROGs, RPDs, and RFAs. Defendants failed to serve initial verified responses by the statutory deadline, May 15, 2026.

(Moghadam Decl., ¶ 5, Exh.

C.) Plaintiff's counsel emailed opposing counsel on May 19, 2026, regarding Defendants' failure to respond. (Moghadam Decl., ¶ 6, Exh. C.) On May 21, 2026, opposing counsel responded to "please see the attached drop box with documents responsive to your discovery request. I will prepare a formal response and get it to you early this next week." (Moghadam Decl., ¶ 7, Exh.

D.) In his declaration attached to the motion to compel responses to RPDs, Plaintiff's counsel states that the Dropbox contained "a handful of correspondence. There was no formal response to the RFPs, much less a verified response." (Moghadam RPD Decl., ¶ 7, Exh. D.) As of the date of these filings, Defendants have not responded to any of the requests. (Moghadam Decl., ¶ 8.)

Defendants have not

filed an opposition. It is undisputed that the initial discovery responses at issue were not provided by the statutory deadline or by the filings of these motions.

Accordingly, the Court

grants the present motions. Plaintiff's request for admissions, set one, are deemed admitted.

II.

Sanctions

Plaintiff

requests a total of \$21,882 for all four discovery motions: \$5,883.00 for SROGs, \$4933.00 for RPDs, \$5,083.00 for FROGs, and \$5,983.00 for RFAs. Counsel is requesting 1.2 hours for drafting a single correspondence in all four

motions, 8.6 hours in total for drafting all four motions (2.5 hours for the FROGs, 1.7 hours for the FROGs, 1.3 hours for the RPDs, and 2.6 hours for the RFAs), 8 hours in total for reviewing the oppositions and drafting replies, and 4 hours in total for preparing and arguing at the hearing for all four motions. (Moghadam Decl., ¶ 10.) Counsel bills at a rate of \$1000/hour as an attorney who has been practicing since 2012 and attached Exhibits of the Laffey Matrix and an order from Judge Mark A. Young, dated March 24, 2026, valuing his services at \$950/hour. (Moghadam Decl., ¶ 12-13, 15, Exhs. E-F.)

It is mandatory that the Court “impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c).)

It is mandatory that the court “impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposed a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

It is mandatory that the court “impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion” (Code Civ. Proc., § 2033.280, subd. (c).)

The

Court does not find Defendant to have acted with substantial justification, and Defendants do not offer an opposition that speaks to other circumstances that would make the imposition of sanctions unjust. Defendants were told about their lack of responses by the statutory deadline and failed to serve verified responses even after indicating they would.

However,

the Court finds the hours billed for attorney's work in association with the four motions to be excessive. First, the Court reduces the total by 8 hours

because no oppositions have been filed. Second, the court reduces 1.2 hours for drafting a single correspondence email to opposing counsel, which was requested four times even though it is the same email. Third, the Court finds 8.6 hours for drafting simple discovery motions to be excessive and unreasonable, especially for an attorney who has more than a decade of experience, and reduces the total hours to 4, 1 hour per motion. The Court also reduces the hours for appearing and preparing for the hearings to 1 hour total because all four motions will likely be heard together and no oppositions have been filed.

Accordingly,
the Court grants sanctions in the reduced total amount of \$4750.00, at a rate of \$950/hour.

Conclusion

Plaintiff's motions to compel
initial responses to the first set of special interrogatories, form
interrogatories, requests for production, and to deem requests for admissions
admitted are GRANTED.

Plaintiff's requests for sanctions
are granted in the reduced total amount of \$4750.00, at a rate of \$950/hour.

The Court further orders Defendants
to provide complete and verified responses to Plaintiff's Requests for Special
Interrogatories, Set One, Form Interrogatories, Set One, and for Production,
Set One, without objections, and to pay sanctions of \$4750.00 to Plaintiff,
within 20 days of the date of this Order

Plaintiff shall provide notice of
this order.

Dated: July 1, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court